

26STCV14523 26STCV14523

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-09-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C09%2F22%2F2026

Source SHA-256: ca420ef771368f49c8389e57df56241c78e60c17b489b073f4e6a5e9c77a8c9b

Case Number: 26STCV14523 Hearing Date: September 22, 2026 Dept: 307

14

TENTATIVE RULING 9:15

a.m., Tuesday, Sept. 22, 2026

ALEK

ZEVEN, et al. v. ANZHELA HONCHARENKO [26STCV14523]

DEFENDANT

ANZHELA HONCHARENKO'S MOTION FOR RENEWED CONSIDERATION OF HER SPECIAL MOTION TO STRIKE THE COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

TIMELINE:

Complaint alleges defamation and false light

9/13/2023: Defendant Anzhela Honcharenko

("Defendant") files a lawsuit for sexual battery, etc. against Plaintiff Alek Zeven ("Zeven"), who is a licensed California attorney and the principal and public face of Plaintiff Zeven Law Firm (collectively with Zeven, "Plaintiffs") Anzhela Honcharenko v. Alek Zeven, et al. (Case No. 23VECV04042) (the "2023 Action").[1]

Circa 8/2025: Defendant allegedly makes false statements concerning Zeven. Specifically, Defendant communicates to third parties that Zeven had engaged in sexual relations with his former client while acting as the client's attorney. (Compl., ¶¶ 9-10.)

1/16/2026: The deposition of Yelena Zadoyen is taken in the 2023 Action. (Honcharenko Decl., ¶ 3.) Defendant attends and

represents herself at the deposition, but without the assistance of a Ukrainian interpreter. (Ibid.)

2/5/2026: In the 2023 Action, Plaintiffs file a motion for leave to file a Cross-Complaint, arising out of allegations that Defendant had published non-privileged, false statements to third parties involving Plaintiffs' privacy interests and sensitive reputation material. (See Def.'s Req. for Judicial Notice in Support of Special Motion to Strike, 5/18/2026, Exh. B.) The court in the 2023 Action denies the motion, but notes that Plaintiffs could assert these claims in a separate lawsuit. (Id., Exh. F.)

5/5/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Defamation: Slander Per Se (Civ. Code, § 46)

2. False Light

5/18/2026: Defendant files a Special Motion to Strike the Complaint, which is denied on 6/12/2026 on the grounds that Defendant failed to overcome her moving burden of demonstrating that the Complaint arises from protected litigation-related activity. (See Minute Order, 6/12/2026 [adopting tentative ruling].)

8/12/2026: Defendant obtains a translated, certified copy of the January 2026 deposition transcript. (Honcharenko Decl., ¶ 7, Exh. C.)

8/19/2026: Defendant files this Motion for Renewed Consideration, which is followed by Plaintiffs' Opposition (8/31/2026) and Defendant's Reply (9/14/2026).

TENTATIVE

RULING: DEFENDANT ANZHELA HONCHARENKO'S MOTION FOR RENEWED CONSIDERATION OF HER SPECIAL MOTION TO STRIKE is DENIED.

MOTION FOR RENEWED CONSIDERATION

Defendant moves pursuant to Code of Civil

Procedure section 1008, subd. (b) for the renewed consideration of her previously denied special motion to strike on the grounds that new evidence was obtained on August 12, 2026, after the special motion to strike was ruled upon.

Under Code of Civil Procedure section 1008, subd. (b), “[a] party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law.” (Code Civ. Proc., § 1008, subd. (b), italics added.) In effect, section 1008, subd. (b) concerns the “renewal” of a prior motion, seeking the same relief previously denied based on different factual or legal grounds. (See e.g. *California Correctional Peace Officers Assn. v. Virga* (2010) 181 Cal.App.4th 30, 45.) For this type of “renewed” motion, the moving party must show “by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (b).) The moving party is also required to “show diligence with a satisfactory explanation for not presenting the new or different information earlier.” (Even *Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833 (Even Zohar).)

Here, Defendant argues that the certified transcript of the January 16, 2026 deposition was unavailable to her at the time she filed her original special motion to strike because Defendant was “financially unable to purchase” the transcript and she only first obtained the transcript in August 12, 2026. (Mot., at p. 3.) Defendant contends that this deposition transcript provides evidence that Plaintiffs used formal discovery in the 2023 Action to inquire about Defendant’s statements to third parties related to Zeven’s “inappropriate relationships” with clients. (Id., at p. 4.) For example, in the deposition transcript, Zeven asks the witness whether Defendant had told the witness about Zeven’s inappropriate relationships with clients other than Defendant. (Honcharenko Decl., ¶ 7, Exh. C, at pp. 164:2-22, 336:2-22.)

The

Court finds that Defendant fails to overcome her burden of demonstrating the existence of “new or different facts” based on the January 2026 deposition transcript. (Code Civ. Proc., § 1008, subd. (b).) The relevant deposition occurred in January 2026— four

months prior to the filing of Defendant's special motion to strike in May 2026. (Honcharenko Decl., ¶ 4.) Defendant admits that she was personally present at the deposition to represent herself in pro per (as is also reflected in the deposition transcript itself). (Id., ¶ 4, Exh. C.) Defendant argues that her imperfect English and lack of translation assistance impaired her ability to understand the scope of Zeven's questioning as it occurred during the deposition. (Id., ¶ 5.) However, Defendant's difficulty with English does not excuse her from diligently obtaining a copy of the deposition transcript, given that her presence at the deposition and her ability to understand the proceedings enough to offer basic objections at the time of questioning would have given her sufficient notice of the contents of the deposition such that she would have known she needed to promptly obtain a copy of the transcript. Even so, Defendant's special motion to strike makes no reference to the contents of the January 2026 deposition as it pertains to her SLAPP theory and she did not request a leave to file a belated special motion to strike on the basis that she was still obtaining evidence that she knew or should have known might be relevant to the motion.

Additionally,

Defendant declares that she could not obtain a certified transcript "because of financial hardship," and only obtained the transcript in August 2026 (after the ruling on her special motion to strike) through the assistance of the California Court Reporters Board. (Honcharenko Decl., ¶¶ 6-7.) Even so, Defendant offers no legal authority for her contention that "financial hardship" excuses her from strict diligence in obtaining evidence that is otherwise available and known of. Notably, Defendant's declaration is vague as to when she initially sought a copy of the deposition transcript or when she first sought assistance from the California Court Reporters Board. Defendant's vague references to "financial hardship" fails to offer a "satisfactory explanation" as to why the deposition transcript could not have been obtained earlier. (Even Zohar, *supra*, 61 Cal.4th at p. 833.)

Even if Defendant had overcome her moving burden under Code of Civil Procedure section 1008, subd. (b), the underlying deposition testimony is insufficient to alter the Court's original analysis on the First Prong of the special motion to strike. Plaintiffs' slander per se and false light causes of action arise from allegations that Defendant published false statements to third parties about Zeven's alleged sexual relations with an individual with whom he had an ongoing attorney-client relationship. (Compl., ¶¶ 9-10, 15-18, 21, 29.) While Plaintiffs allege that Defendant's false

statements were intended to advance her claims in litigation by “attempting to portray Zeven as engaging in a supposed pattern of sexual misconduct with clients,” Plaintiffs expressly allege that the statements underlying Defendant’s alleged liability were “made privately to third parties in a social setting and were not made in connection with any judicial proceeding, anticipated litigation activity, law-enforcement report, State Bar compliant, or other official proceeding.” (Id. ¶¶ 12, 14.)

While

the deposition transcript reflects that Zeven questioned a witness about whether Defendant had made statements to her and other parties about his “inappropriate relationships with other clients,” the witness denied knowledge of any such communications. (Honcharenko Decl., Exh. C, at p. 164:2-23, 334:2-22.) The deposition involves a witness, Ms. Zadoyen, who seemingly was not involved with the alleged communications by Defendant in August 2025 which form the basis of the instant Complaint. According to the evidence submitted by Plaintiffs in support of their original opposition to the special motion to strike, Defendant’s false statements to the hairdresser of Oksana Popova, a former client of Zeven, form the basis of this Complaint. (Popova Decl., ¶¶ 2, 4-6.) Defendant’s motion for renewed consideration does not set forth “new or different” evidence to dispute that Defendant’s alleged comments to a hairdresser in August 2025 are protected petitioning activity. That the August 2025 statements were ultimately the subject of discovery in the 2023 Action does not mean that the statements themselves, which were made in a social setting outside the direct scope of the 2023 Action, are protected by the Anti-SLAPP statute. (Compl., ¶ 12.)

Finally,

the Court notes that Defendant’s reply brief largely attempts to adjudicate the merits of Plaintiffs’ Complaint by attacking the credibility of the evidence submitted by Plaintiffs. However, these arguments are more relevant to Prong Two of Defendant’s special motion to strike, which the Court did not need to reach because Defendant’s motion failed on Prong One. Regardless, in evaluating an Anti-SLAPP motion, the court “neither ‘weigh[s] credibility [nor] compare[s] the weight of the evidence. Rather, [the court] accept[s] as true the evidence favorable to the plaintiff ... and evaluate[s] the defendant’s evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.’” (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 269, fn. 11.) The sole evidentiary issue before the Court here is whether the January 2026 deposition transcript is sufficient to modify the Court’s original conclusion that Defendant’s Anti-SLAPP motion failed on Prong One. It is not.

Therefore,

Defendant's motion for renewed consideration of the Court's June 12, 2026 ruling on Defendant's special motion to strike is DENIED.

Defendant Anzhela Honcharenko to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order. TR emailed to counsel and posted to court website on 9/21/26 at 2:15 p.m.